

SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE, AGENCIES, SYSTEMS, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR CYBERSECURITY GUIDE COUNTERFACTUAL APPELLATE BRANCH — NEVER FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED DOCKET: SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED

Never-Filed Public Redacted Counterfactual Response Brief

Court: United States Court of Appeals for the Fourth Circuit **Case:** Open Grid Archive v. United States Department of Energy **Isolated docket:** SYN-CA4-26-CV-4106-CF-NEVER-OCCURRED **Filed:** April 6, 2026

DOE asks the Court to affirm all four corrected rulings. The record held constant by the premise establishes a law-enforcement purpose and supports 7(E) protection for nonpublic trigger order and implementation detail. The correction then supplies what the actual history lacked: function-specific 7(F) explanations, affirmative line-review evidence, and document-specific sealing findings.

Open Grid’s opening brief correctly recognizes that administrative material remains public. Its proposed remand is unnecessary because the corrected worksheet identifies each retained segment, explains the claimed function and harm, and records why nearby text was released or could not be separated. The same discipline limits rather than enlarges the exemptions.

Public judicial access is also protected. Each legal submission has a complete redacted counterpart. Controlled access is disclosure-specific, session-bound, revocable, and verified from content-addressed storage on every authorized open. Closure ends thirty days after mandate absent a new supported order.

This response defends only the never-filed premise. It offers no view about the actual appeal and contains no operational value.

Jurisdiction and the Isolation Constraint

The January 2 final district judgment and timely notice satisfy 28 U.S.C. § 1291. Review of that final decision includes the merits of the FOIA rulings and the related judicial-record sealing determination. The corrected premise does not supply jurisdiction; it changes only the facts used to analyze the four identified targets.

No second district case, judgment, or appeal exists. The branch cannot borrow an appellate event from the actual docket or a mutually exclusive training path. Its documents are considered in their own chronology and have no legal effect elsewhere.

The underlying request, search, responsive inventory, administrative exhaustion, summary-judgment proceedings, and finality remain fixed. The branch supplements the assumed evidentiary explanations and narrows the sealing rationale. That bounded change permits comparison without rewriting the district record wholesale.

Open Grid suggests that accepting the corrected showing risks treating the premise as a legal stipulation. DOE agrees that the Court must apply the law independently. The point is narrower: when the assumed facts satisfy the governing requirements, no remand is needed merely because the actual record would have required one. Full affirmance here expresses only the consequence of the corrected facts.

Standards Governing the Four Targets

FOIA exemption determinations are reviewed de novo, and DOE bears the burden of showing that retained information fits an exemption. At summary judgment, reasonably specific declarations are sufficient when they are made on personal knowledge, explain the withheld functions, and are neither contradicted by the record nor undermined by bad faith.

Exemption 7(E) distinguishes techniques and procedures from guidelines. Under *Grey v. Alfonso-Royals*, nonpublic implementation detail of a technique or procedure can be protected even if the general method is known; a guideline receives the separate statutory risk-of-circumvention analysis. Exemption 7(F) asks whether disclosure could reasonably be expected to endanger a person.

Functional categories are permissible when grounded in document-by-document review and linked to the relevant harm. The agency also must disclose every reasonably segregable nonexempt portion. Those inquiries may overlap factually but remain legally distinct.

Sealing judicial materials requires public notice, identification of the access interest, consideration of less restrictive alternatives, and specific findings. Technical access controls implement a justified order; they do not substitute for the findings. DOE accepts each of these burdens and contends the corrected record meets them.

Law-Enforcement Purpose

Grid Sentinel's final exercise records were compiled to support prevention of, and organized response to, unlawful attacks against fictional critical infrastructure. Custodian testimony distinguishes that function from general records management. The playbooks collect decision relationships and human-protection coordination for a law-enforcement objective, even though this training corpus includes no live system or actual event.

Public Employees for Environmental Responsibility recognizes that emergency-response information may serve a law-enforcement purpose where it addresses criminal threats. The fact that a record has training or operational uses does not remove it from Exemption 7. At the same time, satisfying the threshold does not prove that every page fits 7(E) or 7(F).

DOE does not rely on its institutional identity alone. The declarations identify the records' preventive objective, their approved status, and the way the fictional program uses them to organize exercise review. Governance materials lacking protected relations were released in full, confirming that subject proximity was not treated as enough.

Open Grid accepts the threshold for this branch. The remaining questions therefore concern the content and explanation of the limited withholdings, not whether the records were compiled for a qualifying purpose.

Exemption 7(E) Protects the Identified Relations

The operational decision trees contain nonpublic predicates, relative review order, branch relationships, and selected guideline values. Public text shows those categories as [REDACTED—FICTIONAL DECISION CONDITION], [REDACTED—FICTIONAL RESPONSE ORDER], and [REDACTED—FICTIONAL ESCALATION VALUE]. None of the notices reveals omitted length or content.

DOE treats the authentic predicate-order relation as implementation of a technique or procedure. Disclosure would expose how the fictional exercise moves among decision states, not simply reveal that a decision tree exists. For the guideline category, the worksheet separately explains that an authentic value could enable anticipation of a classification change and thereby risk circumvention.

The showing does not sweep in ordinary administration. Titles, effective dates, owners, approval status, neutral purposes, revision explanations, and general recordkeeping directions are disclosed whenever they stand independently. A fragment is retained only when its location or meaning would expose the protected relationship or when no useful meaning remains after deletion.

Open Grid's request to preserve precise limits is consistent with affirmance. The corrected ruling protects the operational target described here, not every sentence in a record bearing the Grid Sentinel name.

Record Evidence Supporting 7(E)

The custodian compared current, predecessor, exercise, and quality-review editions. That comparison matters because disclosure of a changed relation could reveal which fictional condition or order was revised. The declaration does not claim that age alone makes a predecessor exempt; it asks whether the comparison preserves the implementation relation.

Public and controlled samples isolate the disputed functions. Administrative text remains readable around the notices. The page-linked worksheet records whether a retained segment is a predicate, ordering relation, implementation connection, or guideline. For the guideline class, it records the specific circumvention inference. Reviewers did not apply the risk language to a technique as though *Grey* required it.

The fully withheld operational trees receive additional explanation. Their relations recur across the source structure, and isolated fragments either expose arrangement through position or lack independent meaning. The line-review account tests title blocks and revision information separately instead of assuming total integration.

This evidence supports the defined 7(E) target. The Court can affirm that target while reiterating that general descriptions and administration remain nonexempt. No authentic condition, sequence, threshold, or implementable method appears in either branch counterpart.

The Corrected Line-by-Line Review

Reviewers assessed every responsive page and each retained segment. They asked whether words conveyed independent administrative meaning, whether placement exposed a protected relation, whether a heading remained useful without subordinate content, and whether general coordination prose could be detached from a human-function field.

The worksheet correlates each decision to the record, source page, segment type, exemption, and explanation. It identifies released ownership lines, neutral headings, approval context, revision history, recordkeeping directions, broad coordination language, and closure administration. Remaining public notices identify only conditions, response order, guideline values, duty roles, safety references, or contact categories.

The method produced the same seventeen-passage supplemental release on eleven images. Six images contain two new passages and five contain one. No record was added, no source page moved, and no replacement image was double-counted.

Open Grid asks whether more administrative text could be separated from the three wholly withheld records. The worksheet answers by describing how each proposed fragment was tested and why its position disclosed relation or its surviving words lacked meaning. That affirmative evidence, not production volume, supports the corrected segregability finding.

The Limited 7(F) Rule

Exemption 7(F) does not require DOE to name the person who could be endangered. It does require a reasonable expectation that disclosure of the withheld information could threaten some individual's life or physical safety. *Electronic Privacy Information Center* applies that textual standard while preserving a separate segregation inquiry.

The corrected showing also follows *Zaid*. Review began document by document. Only after that examination did DOE group segments by actual function: duty assignment, contact category, safety reference, and escalation placement. Each retained entry states how disclosure of its function could facilitate interference with people supporting a protective response.

These groups are narrower than the original categorical theory. A safety-related heading alone receives no 7(F) protection. General coordination prose is released unless it reveals a protected assignment or channel. A segment marked under both exemptions has an independent 7(E) relation and an independent human-safety rationale.

Reasonable expectation is not certainty. DOE need not show that harm already occurred or expose the identity it seeks to protect. The corrected evidence supplies a logical disclosure-to-interference connection at a safe level of abstraction, which is enough for the limited retained fields.

Functional Application of 7(F)

[REDACTED—FICTIONAL DUTY ROLE] denotes an authentic assignment whose disclosure could focus interference on a person performing the protective function. [REDACTED—FICTIONAL CONTACT CHANNEL] denotes a communication category that could facilitate misdirection toward that function. [REDACTED—FICTIONAL SAFETY REFERENCE] denotes the safeguard an interferer could seek to disrupt.

An escalation placement, represented by [REDACTED—FICTIONAL ESCALATION VALUE], receives 7(F) treatment only when the worksheet shows that it exposes when a human protective function becomes relevant. Otherwise, a guideline value is analyzed solely under 7(E). The distinction prevents a safety label from swallowing every matrix cell.

Open Grid argues that nearby headings remain public. DOE agrees and released them where they retain meaning. The correction supports withholding of values and relationships, not an entire surrounding paragraph. Page linkage allows the Court to confirm that the field actually performs the stated function.

The sealed labels are inert and therefore cannot endanger anyone. Their role is evidentiary: they show category and relative placement without revealing a real value. The legal inquiry concerns the authentic analogue assumed by the premise, whose function and harm are described without operational detail.

The Vaughn Showing Permits De Novo Review

The primary and supplemental indexes, declarations, worksheet, and paired samples operate together. For each remaining segment, the corrected account supplies the record identity, source location, field function, invoked exemption, overlap status, and predicted disclosure harm. It avoids a universal sentence repeated without regard to content.

For 7(E), the explanation identifies predicate, order, implementation relation, or guideline. It states a circumvention prediction for guidelines. For 7(F), it identifies one of four human-function groups and connects disclosure to interference with a person. For segregation, it records the contextual reason why proposed public text was released or retained.

That level of abstraction permits Open Grid to make the arguments in its opening brief. The requester can challenge whether a heading carries a value, whether overlap is real, and whether the causal connection is reasonable. The Court can compare the explanations with public structure and an authorized inert-label view.

Vaughn detail need not reproduce the protected content. Requiring DOE to state the genuine predicate, assignment, or channel would defeat the exemption. The corrected presentation reaches the point of meaningful review without crossing that line.

Segregability Accounting Is Complete

The twelve responsive records still contain 200 pages. Three records totaling fifty-four pages remain wholly withheld, seven totaling 124 remain partial, and two governance records totaling twenty-two remain complete releases. The supplemental eleven replacement images are part of the existing 146-image production.

Decision materials gained six passages on four images. An exercise matrix gained three on two. The current coordination appendix gained five on three, and its predecessor gained three on two. This allocation yields seventeen passages and exactly six double-release images plus five single-release images.

The substance matters more than the count. Reviewers released neutral ownership, headings, revision facts, general coordination, recordkeeping, approval information, and closure text. They retained only supported implementation relations, qualifying guideline values, and limited human-function fields. For wholly withheld sources, the worksheet addresses proposed administrative fragments and their positional meaning.

DOE has therefore provided affirmative evidence that the segregability duty was performed. Open Grid identifies no specific remaining sentence that the corrected worksheet overlooks. A remand to repeat the same supported examination would serve no purpose.

Document-Specific Sealing Findings

The assumed sealing ruling recognizes both common-law and First Amendment access interests where applicable, provides public notice, and evaluates each brief counterpart independently. It rejects docket-wide closure and keeps the premise, motion, certificate, argument materials, opinion, judgment, and rehearing papers public.

Each controlled brief has an equal-page public mate. Legal authorities, procedural facts, arguments, and requested relief remain visible. Closure is limited to inert-label passages representing authentic implementation or human-function fields. The ruling explains why unrestricted disclosure of the genuine values would defeat the asserted interest.

The court considered complete unsealing, line redaction, narrative summary, restricted exhibits, and delayed release. Paired copies combine visible notices with independent public explanations and thus preserve more access than an entirely sealed filing. The order expires thirty days after mandate unless new findings justify a change.

Company Doe requires these steps and does not forbid narrow closure supported by them. Open Grid's concern that controls cannot replace findings is correct but inapposite: the corrected ruling supplies the findings first. The controls then enforce their exact scope.

Public Projection and Authorized Access

Without a grant, the record resolves only the public counterpart. The sealed asset remains unresolved; its locator, digest, size, and physical page identity are absent from the public response. A stable logical subject continues to support citations without revealing controlled storage information.

An authorization event must name the particular disclosure, participant, session, and exact resolved pack closure. The opening grant cannot open the response or reply. Eligibility stated in the certificate is not authorization. Judges and assigned staff may receive judicial access; Tamsin Roe, Leo Marr, and Corin Pell may receive only access corresponding to their role and the specific order.

Every controlled open triggers deferred content-addressed verification of expected path, byte size, digest, readability, and page count. A mismatch fails closed. Successful checks expose only a leased session snapshot. Revocation removes the sealed row and restores the public-only view without breaking the stable logical reference.

These features implement the least restrictive order and prevent persistent disclosure. They do not make a sealed label sensitive or create a real cyber fact. They demonstrate faithful enforcement of the corrected passage-specific findings.

Conclusion

The corrected premise resolves the deficiencies that would otherwise require vacatur. The unchanged evidence protects genuine operational predicate and order under 7(E). The revised 7(F) worksheet limits safety withholding to four meaningful functions and connects each retained segment to expected danger to a person.

The contextual review releases all meaningful nonexempt administration and documents why remaining fragments cannot be separated. The sealing ruling preserves public counterparts, makes material-specific findings, considers alternatives, limits duration, and uses revocable verified access.

Open Grid's proposed narrowing is already embodied in those corrections. It identifies no retained field outside the defined groups and no public-access interest ignored by the assumed findings. The Court should affirm the operational-decision-tree target, the limited 7(F) target, the segregability ruling, and the corrected sealing ruling, with no remand.

Corin Pell certifies that this public response contains fourteen logical pages and was served only through the isolated exercise system on April 6, 2026. It contains no real protected information and never appeared on the actual docket.

Corin Pell Fictional Counsel for DOE